

Domestic Violence (Offense and Punishment) Act, 2009

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Amending Acts

1. Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015) 2072.06.14
2. Act to Amend Some Nepal Acts, 2072 (2015) 2072.11.13
3. Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018) 2075.11.19
4. Act to Amend Some Nepal Acts Relating to the Civil Code, 2075 (2018) 2076.01.02
5. Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081 (2024) 2081.12.18

Act Number 1 of the Year 2066 (2009)

An Act Made to Make Provisions Relating to Controlling Domestic Violence

Preamble: Whereas, it is desirable to make legal provisions relating to controlling such acts by making punishable violent acts occurring within the family or connected with the family, respecting the right of every person to live in a safe and dignified manner, and to provide protection and justice to victims of domestic violence,

The Constituent Assembly has enacted this Act pursuant to Sub-article (1) of Article 83 of the Interim Constitution of Nepal, 2063 (2007). 1. Short Title and Commencement: (1) This Act may be cited as the "Domestic Violence (Offense and Punishment) Act, 2066 (2009)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Domestic Violence" means physical, mental, sexual or economic harm inflicted by a person on another person with whom the person has a domestic relation. Omitted by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).

(b) "Domestic Relation" means a relationship between persons living in the same family as descendants, by marriage or adoption, or as a member of a joint family, dependent or employee. Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). And the term also denotes a relationship between a couple living together or a husband or wife who have separated, whether or not having partitioned the family property. Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).(c) "Physical Torture" means beating, wrongful confinement, causing physical injury, Amended by the Act to Amend Some Nepal Acts

Relating to Good Governance Promotion and Public Service Delivery, 2081 (2024).causing pain to the body by sprinkling or burning, branding, trampling, dragging with chemical substances other than acid, or disfiguring any part of the face or body, or doing or causing to do any such other act.

Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).(d) "Mental Torture" means an act of threatening with physical torture or intimidation, behaving threateningly, abusing, slandering, expelling from home, discriminating on the basis of ideology, religion, culture, customs, traditions, humiliating on the basis of appearance, color, physical build or suffering from any disease, causing mental imbalance, abetting suicide or creating circumstances leading to suicide, to the extent of such acts, and the term also denotes any other act that may cause mental or emotional injury.

(e) "Sexual Torture" means any act of a sexual nature that involves misconduct, insult, discouragement, injury to self-respect, or adversely impacts safe sexual health.

(f) "Economic Torture" means an act of depriving a person from using common or private property or from access to or use of employment or economic resources and means. Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). And the term, in the case of women, also denotes demanding dowry, pressuring to bring dowry, or hatred, neglect or contempt shown for not bringing dowry.

(g) "Victim" means a person who claims to be a victim of domestic violence committed by a person with whom the victim has a domestic relation.

(h) "Perpetrator" means a person who is claimed by the victim to have committed domestic violence against the victim and with whom the victim has a domestic relation, and the term also denotes any other person involved in the act of committing domestic violence or an abettor.

(i) "Police Office" means the police office closest to the place of residence of the victim, the perpetrator or the place of incident, and the term also denotes a children or women cell, a police post or an outpost under the District Police Office.

(j) Amended by the Act to Amend Some Nepal Acts, 2072 (2015)."Local Level" means the Amended by the Act to Amend Some Nepal Acts, 2072 (2015).Rural Municipality or Municipality where the victim resides, the perpetrator resides, or the incident occurred, and the term also denotes the ward committee of the Municipality.

(k) "Court" means the court designated by the Government of Nepal by publishing a notice in the Nepal Gazette. By a notice published in the Nepal Gazette dated 2066.4.26, the relevant District Court has been designated as the Court.

Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).(k1) "Complaint" means a complaint filed pursuant to Section 4 or 5, and the term also denotes a First Information Report filed pursuant to Section 5A. (l) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Not to Commit or Cause to Commit Domestic Violence: (1) No person shall commit or cause to commit domestic violence, or attempt to do so, or abet another person to commit domestic violence. (2) If any person does any act contrary to Sub-section (1), he/she shall be deemed to have committed an offense under this Act. 4. To File Complaint: (1) Any person who knows of domestic violence that has occurred, is occurring, or is about to occur, may file a written or oral complaint, providing details thereof, with the Police Office, the National Women Commission, or the Amended by the Act

to Amend Some Nepal Acts, 2072 (2015).Local Level. (2) If a complaint under Sub-section (1) is received in writing, it shall be immediately registered; and if received orally, the necessary details thereof shall be written down or caused to be written down, signed or thumb-printed by the complainant, and registered. (3) In respect of a complaint registered with the National Women Commission, necessary action shall be taken in accordance with the prevailing law relating to the National Women Commission. (4) If a complaint is registered at a Police Office, the Police Office shall, excluding travel time, summon the perpetrator within twenty-four hours, and if the perpetrator fails to comply, arrest him/her and immediately record a statement. (5) Amended by the Act to Amend Some Nepal Acts, 2072 (2015).If a complaint is registered at the Local Level, the Local Level shall, excluding travel time, summon the perpetrator within twenty-four hours, and if the perpetrator fails to comply, arrest him/her with the assistance of the police and immediately record a statement. (6) If the victim appears to have suffered any physical injury or mental torture due to domestic violence, the victim shall be sent immediately to the nearest hospital or health center for treatment and the victim's medical examination and injury report shall be arranged.

One copy of the injury examination report arranged by the local body shall be sent to the Police Office.

(7) Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).While conducting a preliminary inquiry into the complaint, if it appears necessary to provide security to the victim and persons dependent on him/her, immediate security arrangements shall be made with the assistance of the Police Office.

(8) If, from the statements recorded under Sub-section (4) or (5) and other matters, domestic violence appears to have occurred, and if the victim so desires, the Police Office and the Amended by the Act to Amend Some Nepal Acts, 2072 (2015).Local Level shall mediate between both parties within thirty days from the date of filing of the complaint. Provided that, in respect of a First Information Report filed under Section 5A, action shall be taken in accordance with the prevailing law.

(9) While mediating under Sub-section (8), the assistance of a psychiatrist, sociologist, social worker, a family member trusted by the victim, and other witnesses may be taken, as available and necessary. While mediating in this manner, the possible psychological and social impact on the victim and the right to confidentiality shall also be taken into account.

(10) While conducting proceedings and disposing of a complaint, the Police Office or the Amended by the Act to Amend Some Nepal Acts, 2072 (2015).Local Level shall keep the victim on personal recognizance (tarekh).

(11) If the perpetrator is not present within the period set under Sub-section (4) or (5), or cannot be produced, or if mediation between the parties fails, and with the consent of the complainant, the Police Office or the Amended by the Act to Amend Some Nepal Acts, 2072 (2015).Local Level shall, within fifteen days from the expiry of the period mentioned in Sub-section (8), submit the complaint and the related case file documents and evidence to the Court, stating the same facts.

(12) It shall be the duty of the Police Office to provide assistance pursuant to Sub-sections (5) and (7). 5. Court to Conduct Proceedings: (1) Upon receiving a complaint pursuant to Sub-section (11) of Section 4, the Court shall, on the basis of that complaint, conduct proceedings and dispose of the matter in accordance with this Act.

(2) Notwithstanding anything contained in Section 4, if the victim so desires, he/she may file a complaint directly with the Court. 5A.

To File First Information Report (Jahiri): Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). (1) Notwithstanding anything contained in Sections 4 and 5, any person who knows of domestic violence that has occurred, is occurring, or is about to occur, involving physical torture resulting in dismemberment or by sprinkling Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). burning, branding, trampling, dragging, causing pain to the body with chemical substances other than acid, or disfiguring any part of the face or body, or sexual torture, may file a First Information Report with the nearest Police Office in accordance with the prevailing law. (2) Where a First Information Report is filed under Sub-section (1), the provisions relating to investigation and prosecution by the Police Office shall be in accordance with the prevailing law. 6. Power to Issue Interim Protective Order: (1) If, from a preliminary inquiry into a complaint, it appears necessary to provide immediate protection to the victim, the Court may, until final decision on the complaint, issue an order in favor of the victim as follows:- (a) to allow the victim to reside in the house he/she has been living in, to provide food and clothing, not to beat, and to treat with courtesy and civility, (b) to arrange for appropriate treatment or provide an appropriate amount for treatment if the victim has suffered physical or mental injury, (c) if it appears unsuitable for the perpetrator and victim to live in the same place, to arrange for the perpetrator to live separately, and to make necessary arrangements for the maintenance of the victim while living separately, (d) not to do or cause to do any act of abusing, threatening or behaving uncivilly, (e) not to cause distress or harassment by going to the place where the victim resides separately, or on the road, or at the office, or by any means of communication or in any other manner, (f) to do or cause to do any other necessary and appropriate thing for the welfare and safety of the victim. (2) If, from a preliminary inquiry into the complaint, it appears necessary to provide any protection under Sub-section (1) to the minor children of the victim or any person dependent on the victim, in addition to the victim, the Court may issue any order under that Sub-section. 6A.

To Appoint a Legal Practitioner: Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). During the proceedings of a case relating to an offense under this Act, the victim may, if he/she so desires, appoint another legal practitioner. 7. Proceedings to be in Camera: (1) If requested by the victim, the Court shall conduct proceedings and hearing relating to a complaint under this Act in camera. (2) When proceedings and hearing are conducted in camera under Sub-section (1), only the parties to the case, their legal practitioners, and persons permitted by the Court may enter such chamber. 8. Summary Procedure to be Adopted: While conducting proceedings and disposing of a case under this Act, the procedure under the Summary Procedure Act, 2028 (1971) shall be adopted. 9. Treatment Expenses to be Borne by the Victim: Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). (1) The expenses incurred for immediate treatment of a victim of domestic violence under Sub-section (6) of Section 4 shall be borne by the victim, and if the victim is unable to provide such expenses immediately for any reason, the concerned Amended by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018). Local Level shall make such expenses available immediately, and Omitted by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018) such amount shall be recovered or caused to be recovered from the perpetrator as government arrears. (2) If a victim of domestic violence has to undergo treatment at a hospital due to being mentally or physically incapacitated, the total expenses incurred for the treatment shall be borne by the victim. (3) Notwithstanding anything contained in Sub-section (2), if the victim is unable to provide such expenses immediately for any reason, the Court may order that the concerned Amended by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018). Local Level or the service center under Section 11 shall provide such treatment expenses to the

victim, and the amount made available in this manner Omitted by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018) shall be recovered or caused to be recovered from the perpetrator as government arrears. 10.

To Provide Compensation: The Court may, having regard to the nature and extent of domestic violence, the suffering caused to the victim, and the economic and social status of the perpetrator and the victim, order the perpetrator to pay a reasonable amount of compensation to the victim. 11. Service Center: (1) For the purpose of providing immediate security to the victim and arrangements for staying separately during treatment, the Government of Nepal may establish service centers as required. Added by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018).(1A) In coordination with the Government of Nepal, the Provincial Government and the Local Level may establish service centers as required. Added by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018).(1B) If the Provincial Government or the Local Level desires to operate service centers established by the Government of Nepal, the Government of Nepal may transfer such service centers to be operated by the Provincial Government or the Local Level. (2) Any organization, after obtaining approval as prescribed, may establish and operate a service center for the purpose mentioned in Sub-section (1). Added by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018).(2A) The monitoring of a service center established and operated by the Provincial Government or the Local Level pursuant to Sub-sections (1A) and (1B) shall be done by the concerned Provincial Government or Local Level. (3) A center operated under Sub-section (2) may be provided financial and other assistance from the Fund under Section 12. (4) The service center may, as required, provide legal aid, counseling service, psychological service and financial assistance to the victim. (5) Provisions relating to the management, operation and monitoring of the service center shall be as prescribed. 12. Service Fund: (1) For the operation of service centers established under Sub-section (1) of Section 11, the Government of Nepal shall establish a Service Fund.

Added by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 (2018).(1A) A Provincial Government desiring to manage and operate service centers established and transferred pursuant to Sub-sections (1A) and (1B) of Section 11 may establish a Service Fund in accordance with provincial law, to be arranged from its own resources, and a Local Level desiring to do so may establish a Service Fund in accordance with local law, to be arranged from its own resources. (2) The Fund under Sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received from any domestic or foreign association, organization or individual, (c) Amount received from other sources. (3) The management and operation of the Service Fund shall be as prescribed. 12A. Protection Officer: Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).The Local Level may designate a Protection Officer for purposes including controlling domestic violence and protecting victims of domestic violence. 12B. To Provide Free Legal Aid: Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).The Government of Nepal shall, upon request of a victim of domestic violence, provide free legal aid through the District Legal Aid Committee. Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).12C. Government of Nepal to be Plaintiff: A case mentioned in Section 5A shall be instituted with the Government of Nepal as plaintiff, and such case shall be deemed to be included in Schedule-1 of the Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075 (2018), as transformed by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 (2017).National Criminal Procedure Code, 2074 (2017). 13. Punishment: Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and

End Gender-Based Violence, 2072 (2015).(1) If any person commits domestic violence involving physical torture or sexual torture resulting in dismemberment or by sprinkling Amended by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081 (2024).burning, branding, trampling, dragging, causing pain to the body with chemical substances other than acid, or disfiguring any part of the face or body, such person shall be punished in accordance with the prevailing law.

Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).(1A) If any person commits domestic violence other than that described in Sub-section (1), such person shall be liable to a fine of three thousand rupees to twenty-five thousand rupees or imprisonment for up to six months or both.

(2) A person who attempts or abets domestic violence or is an abettor shall be liable to half of the punishment prescribed for the principal offender.

(3) If a person who has already been punished for the offense of domestic violence commits the same offense again, he/she shall be liable to twice the punishment for each subsequent time.

(4) If any person holding a position of public accountability commits an offense under this Act against Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).his/her wife, senior citizen, person with disability, minor or pregnant woman, such person shall be liable to an additional ten percent punishment.

(5) If any person fails to comply with an order issued by the Court under Section 6, such person shall be liable to a fine of two thousand rupees to fifteen thousand rupees or imprisonment for up to four months or both. 14. Limitation for Filing Complaint: A complaint for an offense under this Act shall be filed within ninety days from the date of its commission. 15. Act Not to Bar Prosecution Under Prevailing Law: If any act or action which constitutes an offense under this Act is also punishable under any other prevailing law, this Act shall not be deemed to bar prosecution or action under such other law. 16. Matters to Be Governed by This Act and Prevailing Law: Matters provided for in this Act shall be governed by this Act, and other matters shall be governed by the prevailing law. 17. Power to Make Rules: The Government of Nepal may make necessary rules for implementing the objectives of this Act.